

ANTISEMITISM, ANTI-ZIONISM, AND TITLE VI: A GUIDE FOR THE PERPLEXED

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The past eighteen months have seen an unprecedented wave of claims by public officials and private plaintiffs that universities are violating their legal obligations to Jewish students under Title VI of the Civil Rights Act of 1964.¹ These charges center on an equally unprecedented wave of anti-Israel and anti-Zionist activity on college campuses, much of which is alleged to cross the line from ordinary political activism into antisemitism.² Yet there has been little direct engagement by scholars of antidiscrimination law with the merits of these exceptionally high-stakes claims about Title VI.³ And even as universities and their allies have begun to resist the demands of the Trump Administration’s “Task Force to Combat Anti-Semitism,” they have focused overwhelmingly on the procedural irregularities of the enforcement effort rather

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¹ Title VI provides that “[n]o person . . . shall, on the ground of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance.” 42 U.S.C. § 2000d. For examples of the claims referenced in the text, see *Holding Campus Leaders Accountable and Confronting Antisemitism: Hearing Before the H. Comm. on Educ. & the Workforce*, 118th Cong. 77 (2023) (statement of Rep. Bob Good) (“Why should Congress continue to invest money in Harvard when Harvard clearly violates Title VI and helps foster . . . a hostile environment for Jewish students?”); U.S. HOUSE OF REPS., STAFF REPORT ON ANTISEMITISM 4–5 (2024), <https://www.speaker.gov/wp-content/uploads/2024/12/House-Antisemitism-Report.pdf> [<https://perma.cc/V9EZ-MW4P>]; First Amended Complaint at 2–7, *Students Against Antisemitism, Inc. v. Trs. of Columbia Univ.*, No. 24-cv-01306 (S.D.N.Y. filed June 17, 2024), ECF No. 39 [hereinafter *Columbia Complaint*]; Press Release, U.S. Dep’t of Just., DOJ, HHS, ED, and GSA Announce Initial Cancellation of Grants and Contracts to Columbia University Worth \$400 Million (Mar. 7, 2025), <https://www.justice.gov/opa/pr/doj-hhs-ed-and-gsa-announce-initial-cancellation-grants-and-contracts-columbia-university> [<https://perma.cc/NP9H-QHQD>].

² See, e.g., Colbi Edmonds, Anna Betts, & Anemona Hartocollis, *What to Know About the Campus Protests over the Israel-Hamas War*, N.Y. TIMES (Apr. 28, 2024), <https://www.nytimes.com/2024/04/17/us/college-protests-israel-hamas-war-antisemitism.html> [<https://perma.cc/3DTX-GA22>].

³ Two draft articles are notable exceptions. See generally Jacob E. Gersen & Jeannie Suk Gersen, *The Six Bureaucracy* (Mar. 30, 2025) (unpublished manuscript), <https://ssrn.com/abstract=5199652> [<https://perma.cc/5E76-PXXW>]; Zalman Rothschild, *Anti-Zionism, Antisemitism, Antidiscrimination*, 101 IND. L.J. (forthcoming 2025) (on file with the Harvard Law School Library).

than the underlying assertion that the universities have violated their legal obligations.⁴

In this Essay, we outline and offer concise analyses of the main substantive legal questions posed by the recent Title VI allegations about campus antisemitism. Although specific facts matter and not all of the issues are clear-cut, we conclude that appeals to Title VI in this area face formidable hurdles — beginning with the omission of “religion” as a protected characteristic — that have attracted surprisingly little attention thus far. That is not, of course, to say that campus antisemitism is acceptable. But it does mean that, for the most part, universities have both the right and the responsibility to balance their competing commitments in this area using their own considered judgment. Our analysis also highlights an irony in efforts to link charges of campus antisemitism with a broader critique of progressive ideas about race.⁵ As we will see, construing anti-Zionist and anti-Israel activities as anti-Jewish discrimination would likely require revising antidiscrimination law in ways that progressives have long advocated and that the Trump Administration has denounced.⁶

Our analysis proceeds in three Parts. Because Title VI addresses discrimination on the basis of “race, color, or national origin,”⁷ we begin in Part I with the question of when and how being Jewish qualifies as a protected characteristic under the statute. We then proceed to unpack and assess the two leading theories of how universities have violated Title VI — mainly by tolerating a hostile environment (Part II), but also by engaging in disparate treatment (Part III). Much of our analysis on both points would naturally extend to claims that Israeli students have been subjected to national-origin discrimination, but, in light of space constraints, we will not take up that distinct issue here.

I. JEWISHNESS UNDER TITLE VI

Whereas Title VII’s ban on employment discrimination includes “religion” as a protected characteristic, Congress limited Title VI’s ban on discrimination in federally funded programs to “race, color, [and] national origin.”⁸ Before we can turn to questions about Zionism and

⁴ See, e.g., Complaint at 19, 29–48, *President & Fellows of Harvard Coll. v. U.S. Dep’t of Health & Hum. Servs.*, No. 25-cv-11048 (D. Mass. filed Apr. 21, 2025); Complaint at 64–85, *Am. Ass’n of Univ. Professors v. U.S. Dep’t of Just.*, No. 25-cv-02429 (S.D.N.Y. filed Mar. 25, 2025).

⁵ E.g., Jonathan S. Tobin, Opinion, *Trump Isn’t Exploiting Antisemitism; He’s Attacking Its Root Cause*, JEWISH NEWS SYNDICATE (Apr. 21, 2025), <https://www.jns.org/trump-isnt-exploiting-antisemitism-hes-attacking-its-root-cause> [<https://perma.cc/2RKH-PCSU>].

⁶ See, e.g., Exec. Order No. 14,281, 90 Fed. Reg. 17537, § 1 (Apr. 23, 2025) (condemning “[d]isparate-impact liability” as “mandating, rather than proscribing, discrimination”); sources cited *infra* note 65.

⁷ 42 U.S.C. § 2000d.

⁸ Compare 42 U.S.C. § 2000e-2 (Title VII), with 42 U.S.C. § 2000d (Title VI).

support for Israel, then, we have to answer a critical threshold question: How is anti-Jewish discrimination covered by Title VI at all?

Answering that question requires appreciating a bit of the complexity and historical contingency of what it means to be Jewish. For the most part, “[i]n the contemporary United States, the assumptions that Jews are white and that Judaism is a religion prevail.”⁹ Yet Jews were widely understood as a distinct racial group in the nineteenth century, and even as talk of the “Jewish race” has fallen out of use, “[r]acialist ideas about Jewishness — heritable characteristics, traits, and tendencies — continue to be deeply embedded.”¹⁰ Alongside and overlapping this race-like category, there is also a longstanding conception of Jews as a people or nation — a collective that is not reducible to the more biologically oriented notion of a “Jewish race,” but that resembles it in that membership is generally inherited and does not necessarily depend on any religious conviction (or even a person’s own felt identification with the group).¹¹

What elements of this mixture make it through the filter of Title VI’s language? Our answer, in short, is that Title VI plausibly covers “being Jewish” in the sense of having (or being perceived as having) an immutable, heritable characteristic — whether that characteristic is viewed as a “race” or a “national origin.” As between the two, “race” seems more apt, especially because “national origin” has generally been understood to refer to “the *country* where a person was born, or, more broadly, the *country* from which his or her ancestors came.”¹² This point is not crucial, though, because even if the Jewish people qualified as a “nation[.]” in the statute’s sense, the protected characteristic would remain a person’s “origin,” which is inherently a matter of birth or ancestry.¹³ One way or another, that is, “Jewishness” is plausibly protected insofar as it names *a characteristic that people have (or are imagined to have) by dint of their birth*. And although courts have sometimes conflated different senses of “being Jewish” in this context — perhaps because litigants have not always disaggregated them¹⁴ — our more nuanced

⁹ Annalise E. Glauz-Todrank, *Judging and Protecting Jewish Identity in Shaare Tefila Congregation v. Cobb*, in WHO IS A JEW?: REFLECTIONS ON HISTORY, RELIGION, AND CULTURE 43, 49 (Leonard J. Greenspoon ed., 2014) [hereinafter WHO IS A JEW?].

¹⁰ Sarah Imhoff, *Traces of Race: Defining Jewishness in America*, in WHO IS A JEW?, *supra* note 9, at 1, 1–2.

¹¹ For a history of recent contention over definitions of the “Jewish people” in this sense, see Netanel Fisher, *Who Is a Jew in Israel?*, in WHO IS A JEW?, *supra* note 9, at 129, 129–39.

¹² *Espinoza v. Farah Mfg. Co.*, 414 U.S. 86, 88 (1973) (emphases added); see Juan F. Perea, *Ethnicity and Prejudice: Reevaluating “National Origin” Discrimination Under Title VII*, 35 WM. & MARY L. REV. 805, 821 (1994); see also Kenneth L. Marcus, *Anti-Zionism as Racism: Campus Anti-Semitism and the Civil Rights Act of 1964*, 15 WM. & MARY BILL RTS. J. 837, 874 (2007) (noting that “the legal basis for barring anti-Semitism as a form of national origin discrimination is much shakier”).

¹³ 42 U.S.C. § 2000d.

¹⁴ See, e.g., *Kestenbaum v. President & Fellows of Harvard Coll.*, 743 F. Supp. 3d 297, 307 (D. Mass. 2024) (“The parties agree that Title VI protects Jewish students from harassment . . .”).

position accords with both judicial authority and executive-branch practice.¹⁵

As for the courts, the leading case on anti-Jewish discrimination is the Supreme Court's 1987 decision in *Shaare Tefila Congregation v. Cobb*.¹⁶ The case arose from a Jewish congregation's private suit, under the Civil Rights Act of 1866,¹⁷ against vandals who had defaced their synagogue with Nazi slogans and iconography.¹⁸ The Court agreed with the defendants that the plaintiffs were required to allege "racial animus" that "was directed towards the kind of group that Congress intended to protect."¹⁹ But that "kind" of group, the Court reasoned, was an "identifiable class[] . . . [that faces] discrimination solely because of their ancestry or ethnic characteristics."²⁰ "Such discrimination," the Court explained in a companion case, "is racial discrimination that Congress intended [the statute] to forbid, whether or not it would be classified as racial in terms of modern scientific theory."²¹ (In naming "ethnic characteristics" alongside "ancestry," the Court thus seems to have been referring to other heritable features, such as "distinctive physiognomy," that are taken as markers of membership in a race-like, ancestry-defined group.²²) At least at the time of the 1866 statute, moreover, Jews were understood to constitute a racial group in the relevant sense.²³ The Court thus appears to have held that adverse treatment for being Jewish in a heritable, race-like sense — but not for being Jewish in other senses — was proscribed by the statute. And this accords with the Court's holding, in the companion case, that a plaintiff would prevail if he could "prove that he was subjected to intentional discrimination based on the fact that he was born an Arab, rather than solely on the place or nation of his origin, or his religion."²⁴

The handful of lower courts that have faced the question of *Shaare Tefila*'s applicability in the Title VI context have treated it as controlling there as well, and we will proceed on that same premise here.²⁵ It bears noting, however, that the issue is not clear-cut, because there is

¹⁵ There is also some support for this view in the legislative history of Title VI itself. For relevant discussion, see Gersen & Suk Gersen, *supra* note 3 (manuscript at 4–5).

¹⁶ 481 U.S. 615 (1987).

¹⁷ Ch. 31, 14 Stat. 27 (codified as amended in scattered sections of 42 U.S.C.).

¹⁸ *Shaare Tefila Congregation*, 481 U.S. at 616; see *Shaare Tefila Congregation v. Cobb*, 785 F.2d 523, 529 (4th Cir. 1986) (Wilkinson, J., concurring in part and dissenting in part) (detailing facts).

¹⁹ *Shaare Tefila Congregation*, 481 U.S. at 617.

²⁰ *Id.* (quoting *Saint Francis Coll. v. Al-Khazraji*, 481 U.S. 604, 613 (1987)).

²¹ *Saint Francis Coll.*, 481 U.S. at 613.

²² *Id.*; see *id.* at 610–12 (treating "ethnic" as roughly synonymous with, but more granular than, "racial"); see also *Rice v. Cayetano*, 528 U.S. 495, 514–17 (2000) (treating race and ancestry classifications as relevantly alike).

²³ *Shaare Tefila Congregation*, 481 U.S. at 617–18.

²⁴ *Saint Francis Coll.*, 481 U.S. at 613 (emphasis added).

²⁵ See, e.g., *T.E. v. Pine Bush Cent. Sch. Dist.*, 58 F. Supp. 3d 332, 354 (S.D.N.Y. 2014) (citing *Shaare Tefila Congregation*, 481 U.S. at 617–18); *Yakoby v. Univ. of Pa.*, No. 23-cv-04789, slip op. at 10–11 (E.D. Pa. June 2, 2025).

substantial “evidence . . . that Jews were no longer considered to constitute a separate racial group in 1964.”²⁶ For many interpreters, then, the issue would likely turn on a familiar kind of level-of-generality question: As used in the 1964 statute, is “race” better understood to express a general concept or a concrete, time-bound list of categories?²⁷ We cannot explore the many nuances of that issue here but, to a first approximation, those who sided with the majority in *Bostock v. Clayton County*²⁸ might be expected to take the broader view, and those persuaded by Justice Alito’s dissent might be expected to take the narrower one.²⁹ In any case, we will assume here that Title VI covers “race” discrimination in the broader sense that would include the kind of anti-Jewish discrimination that the Court singled out in *Shaare Tefila*.³⁰

The modern position of the executive branch with respect to Title VI is much the same. As the Department of Education’s Office of Civil Rights put it in a 2024 guidance document: “Title VI’s protections against discrimination based on race, color, and national origin encompass antisemitism . . . *when based on shared ancestry or ethnic characteristics*.”³¹ Using an illustration reminiscent of *Shaare Tefila*, the agency explained that a hypothetical incident would warrant investigation under Title VI because “[t]he use of swastikas and the graffiti/taunts related to hygiene, impurity, and racial hierarchy suggest that the alleged harassing conduct depicts Jewish people as a separate, and inferior, race.”³² President Trump’s 2019 executive order on “Combating Anti-Semitism” took essentially the same position. “While Title VI does not cover discrimination based on religion,” he wrote, “[d]iscrimination against Jews may give rise to a Title VI violation when the

²⁶ Marcus, *supra* note 12, at 872; *see id.* n.226.

²⁷ Cf. Benjamin Eidelson, *Dimensional Disparate Treatment*, 95 S. CAL. L. REV. 785, 836 (2022) (arguing that “[a] key issue for making sense of disparate treatment on textualist terms . . . is how fine-grained one should understand each of the textually enumerated properties to be”).

²⁸ 140 S. Ct. 1731 (2020).

²⁹ *See generally* Tara Leigh Grove, *Which Textualism?*, 134 HARV. L. REV. 265 (2020).

³⁰ Cf. Equal Emp. Opportunity Comm’n v. Catastrophe Mgmt. Sols., 852 F.3d 1018, 1026–27 (11th Cir. 2016) (analyzing the meaning of “race” at the time of the 1964 Act). Kenneth Marcus argues for the same result on the ground that Title VI’s legislative history manifests an intention to track a constitutional standard that, in turn, aligns with the 1866 statute. *See* Marcus, *supra* note 12, at 865–74.

³¹ Letter from Catherine E. Lhamon, Assistant Sec’y for the Off. of C.R., U.S. Dep’t of Educ., to Colleagues 1 (May 7, 2024) [hereinafter 2024 Guidance] (emphasis added), <https://www.ed.gov/sites/ed/files/about/offices/list/ocr/letters/colleague-202405-shared-ancestry.pdf> [<https://perma.cc/568B-TJB2>]. This position appears to trace to a guidance document that Kenneth Marcus issued as the acting head of the agency in 2004. *See* Kenneth L. Marcus, *The Landmark Case of Shaare Tefila v. Cobb*, 25 FEDERALIST SOC’Y REV. 17, 25–26 (2024) (reviewing ANNALISE E. GLAUZ-TODRANK, *JUDGING JEWISH IDENTITY IN THE UNITED STATES* (2023)).

³² 2024 Guidance, *supra* note 31, at 6–7; *see also* Letter from Russlynn Ali, Assistant Sec’y for the Off. of C.R., U.S. Dep’t of Educ., to Colleagues 5 (Oct. 26, 2010) [hereinafter 2010 Guidance], <https://www.ed.gov/sites/ed/files/about/offices/list/ocr/letters/colleague-201010.pdf> [<https://perma.cc/4GSQ-FTE8>].

discrimination is based on an individual's race, color, or national origin."³³ In a guidance document about the effect of the order, the Department of Education then reiterated that "[a]n anti-Semitic incident does not violate Title VI merely because it is anti-Semitic."³⁴

* * *

In keeping with the analysis above, we will describe the relevant protected characteristic here as "racial Jewishness" or "Jewish ancestry." We appreciate that even to speak of a Jewish "race" has an antisemitic ring today,³⁵ but to the extent that other terms such as "ethnicity" serve as more appealing euphemisms, they come at a steep cost in clarity. As we read the statute — and as we take the courts and the government to read it — anti-Jewish and anti-Black discrimination are covered to the same extent and on the same terms.³⁶

With the relevant protected characteristic in view, we can turn to the two theories of liability that have loomed large in recent complaints about anti-Zionist or anti-Israel activity on college campuses — beginning with the claim of a "hostile environment" for Jewish students.

II. A RACIALLY HOSTILE ENVIRONMENT FOR JEWS?

Since the 1990s, the Department of Education has interpreted Title VI to prohibit federally funded schools from tolerating what the agency has termed a "racially hostile environment."³⁷ The agency transplanted this concept from a body of Title VII case law concerning racial and sexual harassment in the workplace.³⁸ In 1999, the Supreme Court ratified that extension by recognizing liability under Title IX (which closely resembles Title VI) for K-12 schools that "subject[]" students to sexual

³³ Exec. Order No. 13,899, 84 Fed. Reg. 68779, 68779 (Dec. 16, 2019). Although the Executive Order also invoked the International Holocaust Remembrance Alliance's definition of antisemitism, it directed that agencies "shall consider" the definition's list of examples "to the extent that any examples might be useful as evidence of discriminatory intent." *Id.*

³⁴ *Questions and Answers on Executive Order 13899 (Combating Anti-Semitism) and OCR's Enforcement of Title VI of the Civil Rights Act of 1964*, OFF. FOR C.R., U.S. DEP'T OF EDUC. (Jan. 19, 2021), <https://www.ed.gov/media/document/faqs-executive-order-13899-combating-anti-semitism-and-ocrs-enforcement-of-title-vi-of-civil-rights-act-of-1964-2021-33939.pdf> [<https://perma.cc/Q76V-MK73>].

³⁵ See, e.g., ERIC L. GOLDSTEIN, *THE PRICE OF WHITENESS: JEWS, RACE, AND AMERICAN IDENTITY* 11 (2006).

³⁶ Or, if one favors the "national origin" theory noted above, anti-Jewish discrimination is covered to the same extent and on the same terms as anti-Italian discrimination, where the targets of the latter are understood to include people born in the United States. See *supra* note 12 and accompanying text.

³⁷ Racial Incidents and Harassment Against Students at Educational Institutions; Investigative Guidance, 59 Fed. Reg. 11448, 11448 (Mar. 10, 1994) [hereinafter 1994 Guidance].

³⁸ See *id.* at 11452–53 (citing, inter alia, *Harris v. Forklift Sys., Inc.*, 510 U.S. 17 (1993); *Meritor Sav. Bank, FSB v. Vinson*, 477 U.S. 57 (1986)).

harassment by a peer.³⁹ According to the Court, students are faced with a hostile environment under that statute — and thus presumably also under Title VI — when they experience “harassment that is so severe, pervasive, and objectively offensive that it effectively bars the victim’s access to an educational opportunity or benefit.”⁴⁰

This much-cited formulation⁴¹ leaves unclear just where the nexus to a protected characteristic figures into the analysis — in our context, what makes for *racial* harassment and hence, in the aggregate, for a *racially* hostile environment. Under one natural view, racial harassment is just a species of conventional disparate treatment, at the hands of peers, on account of race.⁴² What is critical would then be the *reasons* that certain students acted on in mistreating or disfavoring others.⁴³ But it is also possible to understand the racial element of a “racially hostile environment” as pertaining to the *offensiveness* of the underlying conduct, rather than to the reasons why anyone was singled out.⁴⁴ Suppose, for example, that middle-school students repeatedly propound antisemitic conspiracy theories and deny the Holocaust in their history class (and their teacher shrugs it off). A student of Jewish ancestry might well find that environment especially offensive and alienating, potentially hindering their education. And that problem would remain even if neither the offending students nor the teacher even thought that there were any Jewish students in the class — meaning that nobody decided to treat the Jewish student worse by reason of their Jewishness.

The viability of this broader notion of a “racially hostile” environment — in which it is not necessary that anyone intentionally treated racially Jewish students differently — is not clear. Versions of the idea have some support among lower courts in the Title VII context,⁴⁵ but

³⁹ See *Davis v. Monroe Cnty. Bd. of Educ.*, 526 U.S. 629, 643–45 (1999) (quoting 20 U.S.C. § 1681(a)).

⁴⁰ *Id.* at 633.

⁴¹ See, e.g., 2024 Guidance, *supra* note 31, at 4–5.

⁴² See, e.g., Letter from Catherine E. Lhamon, Assistant Sec’y for the Off. of C.R., U.S. Dep’t of Educ., to Colleagues 1 (Nov. 7, 2023), <https://www.ed.gov/sites/ed/files/about/offices/list/ocr/letters/colleague-202311-discrimination-harassment-shared-ancestry.pdf> [<https://perma.cc/XJK9-JJJQ>] (stating that “Title VI’s protection . . . extends to students who experience discrimination, including harassment, *based on their actual or perceived* . . . characteristics” (emphasis added)).

⁴³ See, e.g., *Raytheon Co. v. Hernandez*, 540 U.S. 44, 52 (2003) (“Liability in a disparate-treatment case ‘depends on whether the protected trait . . . actually motivated the employer’s decision.’” (alteration in original) (quoting *Hazen Paper Co. v. Biggins*, 507 U.S. 604, 610 (1993))).

⁴⁴ See, e.g., 2024 Guidance, *supra* note 31, at 3–4, 4 n.16; 2010 Guidance, *supra* note 32, at 6.

⁴⁵ See, e.g., *Sharp v. S&S Activewear, L.L.C.*, 69 F.4th 974, 981 (9th Cir. 2023) (recognizing “‘sexually graphic, violently misogynistic’ music” as “harassment that can . . . give rise to a Title VII claim” because “even if the ubiquitous music was not . . . targeted toward any particular woman, female employees allegedly experienced the content in a unique and especially offensive way”); *Reeves v. C.H. Robinson Worldwide, Inc.*, 594 F.3d 798, 808 n.2, 811–13 (11th Cir. 2010) (suggesting that the female plaintiff “had a right not to suffer conditions in the workplace that were disparately humiliating,” *id.* at 813, and that, even if coworkers would have used the same “gender-specific

the Supreme Court has arguably sent mixed messages about it.⁴⁶ As for Title VI itself, the Department of Education has repeatedly asserted that “[h]arassing conduct need not always be targeted at a particular person.”⁴⁷ But even conduct that is not “targeted at a particular person” might still be aimed at insulting or humiliating a *set* of people who share a particular trait — and some intention vis-à-vis the affected students, as bearers of the protected characteristic, might thus be necessary even under the agency’s reading.⁴⁸

There is also a further complication, specific to Title VI, that bears on the availability of the broader hostile environment theory here. When the Court held that schools may be liable for student-on-student harassment, it relied on the fact that the statute prohibits a funding recipient from “*subject[ing] [persons] to discrimination*” within a federally funded program.⁴⁹ Meanwhile, the Court has also held that Title VI’s operative provision (unlike Title VII’s) “reach[es] only . . . intentional discrimination.”⁵⁰ Putting these holdings together, it might follow that the peer harassment that constitutes the underlying “discrimination” must consist of disparate treatment. Yet the issue is not straightforward, because the Court has also recognized (albeit with reservations in recent years) that agencies may promulgate regulations to “effectuate”⁵¹ Title VI that go beyond the operative provision’s own requirements.⁵² And

epithets” regardless of the presence of women in the workplace, *id.* at 812, the requisite “discriminatory intent” could be inferred from an employer’s failure to respond to complaints about the conduct’s gender-specific effects, *id.* at 813 (citing *Crawford v. Carroll*, 529 F.3d 961, 975–76 (11th Cir. 2008); *Denney v. City of Albany*, 247 F.3d 1172, 1182 (11th Cir. 2001)).

⁴⁶ Compare *Oncale v. Sundowner Offshore Servs., Inc.*, 523 U.S. 75, 79, 81 (1998) (describing the allegations that could support a “hostile environment” sexual harassment claim,” *id.* at 79, in terms that seem limited to conventional disparate treatment, *id.* at 81), and *Bostock v. Clayton County*, 140 S. Ct. 1731, 1743 (2020) (similar), with *Meritor Sav. Bank, FSB v. Vinson*, 477 U.S. 57, 65–66 (1986) (describing approvingly a lower court’s holding that “a Hispanic complainant could establish a Title VII violation by demonstrating that her employer created an offensive work environment for employees by giving discriminatory service to its Hispanic clientele,” *id.* at 66, without suggesting that an intent to affect the employees would be required).

⁴⁷ 2024 Guidance, *supra* note 31, at 4; see *id.* at 3–4, 4 n.16; 2010 Guidance, *supra* note 32, at 4.

⁴⁸ Cf. *Patane v. Clark*, 508 F.3d 106, 114–15 (2d Cir. 2007) (finding it sufficient that conduct was “particularly offensive to women and . . . intended to provoke [plaintiff’s] reaction as a woman,” *id.* at 115 (alterations in original) (emphasis added) (quoting *Petrosino v. Bell Atl.*, 385 F.3d 210, 222 (2d Cir. 2004))); *Reeves*, 594 F.3d at 811 (“Evidence that co-workers aimed their insults at a protected group may give rise to the *inference of an intent* to discriminate on the basis of sex” (emphasis added)); *supra* note 42 and accompanying text.

⁴⁹ 42 U.S.C. § 2000d (emphases added); see *Davis v. Monroe Cnty. Bd. of Educ.*, 526 U.S. 629, 644–47 (1999); see also *Gebser v. Lago Vista Indep. Sch. Dist.*, 524 U.S. 274, 286 (1998) (explaining that Title IX “was modeled after Title VI” and that “[t]he two statutes operate in the same manner”).

⁵⁰ See *Alexander v. Sandoval*, 532 U.S. 275, 281 (2001) (first alteration in original) (quoting *Alexander v. Choate*, 469 U.S. 287, 293 (1985)).

⁵¹ 42 U.S.C. § 2000d-1.

⁵² See *Sandoval*, 532 U.S. at 281 (acknowledging that five Justices in *Guardians Ass’n v. Civ. Serv. Comm’n*, 463 U.S. 582 (1983), “voiced th[e] view” that Title VI regulations “may validly proscribe activities that have a disparate impact on racial groups, even though such activities are

because the Title VI regulations have long been construed to embrace a kind of disparate impact theory, they could be taken to ground the broader conception of a hostile environment (albeit only in an agency enforcement proceeding, not for purposes of Title VI's private right of action).⁵³ Ironically, President Trump's recent directive to repeal Title VI regulations that "impose disparate-impact liability or similar requirements"⁵⁴ could thus turn out to limit his Administration's options for treating anti-Israel activity as creating a hostile environment for Jewish students.

Given all of this uncertainty about the legitimate scope of the hostile environment theory, we will consider separately how each of the two variants sketched above applies in the current context. That requires asking two different questions, both of which build in the result of our earlier inquiry into the relevant sense of "Jewishness."⁵⁵ First, when (if ever) is disfavoring someone for being a Zionist tantamount to disfavoring them *for being racially Jewish*? And second, when might anti-Israel activities, even if they do not constitute disparate treatment on the basis of race, nonetheless make an environment actionably *offensive to people of Jewish ancestry*? After answering these questions, we will turn to the issue of a university's liability for tolerating or failing to remedy a hostile environment of either of these kinds if one exists.⁵⁶

A. Race-Based Disparate Treatment

The first of the two questions that we have distinguished mainly pertains to the Title VI complaints' various allegations of concrete acts of harassment or other discrimination, by fellow students, against Zionists or supporters of Israel.⁵⁷ These include that students attempted to create "Zionist-free" areas on campus, with physical checkpoints; that student journals refused to publish articles by authors who have expressed Zionist views; and that student clubs sought to exclude Zionists from membership.⁵⁸ Are practices of this sort also cognizable as

permissible under [the statute's operative provision]"); see also *Gebser*, 524 U.S. at 292 ("Agencies generally have authority to promulgate and enforce requirements that effectuate [Title IX's] non-discrimination mandate even if those requirements do not purport to represent a definition of discrimination under the statute." (citation omitted) (citing 20 U.S.C. § 1682)).

⁵³ See *Sandoval*, 532 U.S. at 283–86. The agency's guidance on racial harassment has broadly cited the regulations as well as the statute. See, e.g., 1994 Guidance, *supra* note 37, at 11448.

⁵⁴ Exec. Order No. 14,281, 90 Fed. Reg. 17537, 17538 (Apr. 28, 2025).

⁵⁵ See *supra* Part I, pp. 2–6.

⁵⁶ See *infra* section II.C, pp. 19–22.

⁵⁷ Regarding conduct by faculty or others besides fellow students, see *infra* note 136.

⁵⁸ E.g., First Amended Complaint for Injunctive and Declaratory Relief ¶¶ 118–22, 124, *Louis D. Brandeis Ctr., Inc. v. Regents of the Univ. of Cal.*, No. 23-cv-06133 (N.D. Cal. filed May 3, 2024), ECF No. 62 [hereinafter *Berkeley Complaint*]; First Amended Complaint ¶ 132, *Frankel v. Regents of the Univ. of Cal.*, 744 F. Supp. 3d 1015 (C.D. Cal. 2024) (No. 24-cv-04702), ECF No. 101.

disparate treatment of *Jewish* students, such that (if severe and pervasive enough) they could add up to a hostile environment?⁵⁹

Once we appreciate that Title VI recognizes Jewishness only as a racial or ancestral category, the short answer — under existing law — is “no.” Courts have long faced the question whether race-associated cultural practices (such as wearing braids, locks, or cornrows) are protected as facets of “race” for purposes of statutory bans on race-based disparate treatment. And absent a successful claim of pretext, they have consistently held that antidiscrimination law affords no such protection.⁶⁰ As one leading case observed, a “conception of what ‘race’ means” that would extend to “cultural practices,” as opposed to “immutable characteristics,” “runs headlong into a wall of contrary caselaw.”⁶¹

Notice that this same disparate-treatment question might be answered quite differently if Title VI covered Judaism as opposed to racial Jewishness. Although “Zionism” has a complex history and multiple meanings, it is, for many people, a religious conviction about the connection between the people of Israel and the land of Israel.⁶² And disfavoring someone because of a belief to which they are religiously committed might qualify as disfavoring them because of their religion.⁶³ But racial and ancestral categories differ from religious ones in that the former are not defined in terms of beliefs. Indeed, the Supreme Court has held that equal protection forbids even treating these characteristics as suggestive evidence of a person’s beliefs.⁶⁴ To be sure, one could reject this thin and formalistic conception of protected characteristics — as critical race theorists and others have long urged⁶⁵ — and embrace a more substantive vision of antidiscrimination law across the board. Under existing law, however, disfavoring people simply because of their beliefs or practices cannot amount to race-based disparate treatment.

⁵⁹ Under agency guidance, it is possible that severe enough harassment could make up for a lack of pervasiveness. See, e.g., 1994 Guidance, *supra* note 37, at 11449. But see Todd E. Pettys, *Hostile Learning Environments, The First Amendment, and Public Higher Education*, 54 CONN. L. REV. 1, 19–22 (2022) (emphasizing that, unlike under Title VII, the Court has required “both severity and pervasiveness” in the student-on-student harassment context).

⁶⁰ See, e.g., *Equal Emp. Opportunity Comm’n v. Catastrophe Mgmt. Sols.*, 852 F.3d 1018, 1021, 1025 (11th Cir. 2016); see also Deborah Hellman, *Defining Disparate Treatment: A Research Agenda for Our Times*, 99 IND. L.J. 205, 220–21 (2023).

⁶¹ *Catastrophe Mgmt. Sols.*, 852 F.3d at 1030–32.

⁶² See, e.g., NOAH FELDMAN, *TO BE A JEW TODAY: A NEW GUIDE TO GOD, ISRAEL, AND THE JEWISH PEOPLE* 163–65, 183–211 (2024) (discussing religious Zionism); see also Berkeley Complaint, *supra* note 58, ¶ 8 (alleging that “Zionism is a central tenet of the Jewish faith”).

⁶³ Cf. 42 U.S.C. § 2000e(j) (defining “religion” under Title VII to presumptively “include[] all aspects of religious observance and practice, as well as belief”); *Catastrophe Mgmt. Sols.*, 852 F.3d at 1035 n.6 (noting this contrast).

⁶⁴ See *Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll.*, 143 S. Ct. 2141, 2170 (2023).

⁶⁵ See, e.g., Paulette M. Caldwell, *A Hair Piece: Perspectives on the Intersection of Race and Gender*, 1991 DUKE L.J. 365, 374; cf. Hellman, *supra* note 60, at 218–26 (highlighting that some protected characteristics have been defined to include the “practice” of that trait while others have not).

This does not mean that *no* anti-Israel or anti-Zionist activity could amount to race-based disparate treatment, however. For one thing, a purported objection to “Zionists” might simply be a pretext for excluding Jews. That kind of intentional discrimination clearly qualifies as disparate treatment of Jews, not merely of Zionists.⁶⁶ In addition, some complaints allege that students who are thought to be Jewish have been treated adversely because they are *presumed* to be Zionists, at least unless they say otherwise.⁶⁷ That, too, is cognizable as disparate treatment on the basis of being Jewish.⁶⁸ Both of these kinds of cases do, though, pose the difficult factual question of whether the students were disfavored or singled out for “being Jewish” in the *racial* sense.⁶⁹ We expect that instincts will vary about the likelihoods of different mental states here, so we will not purport to answer the question in the abstract. The most we can usefully say is that anti-Zionist acts of exclusion or “shunning” on campus could add up to a racially hostile environment if, but only if, they amount to severe and pervasive harassment even once the set of relevant instances is restricted to those in which (a) an intent to exclude students of Jewish ancestry motivates the exclusion, or (b) it is a student’s perceived Jewish ancestry that grounds an inference about their views regarding Israel. Exclusion of Zionists *per se* would not suffice.

B. Racially Offensive Conduct

As we saw above, differential treatment by reason of one’s race is not the only possible ground of a hostile environment theory. Such a claim could also rest on campus activities that Jewish students justifiably *experience as* hostile to people like them — as in our example of the Jewish middle-schooler whose classmates go on antisemitic rants in

⁶⁶ Some have made a subtler allegation to the effect that a person’s anti-Zionism, although not intended as a pretext for discrimination against Jews, reflects a problematically selective concern for the broader values (such as human rights) in which it is purportedly grounded. Cf. Second Amended Complaint ¶ 98, *Kestenbaum v. President & Fellows of Harvard Coll.*, 743 F. Supp. 3d 297 (D. Mass. 2024) (No. 24-cv-10092) [hereinafter *Harvard Complaint*]. Given space constraints, we will make just two observations about that kind of claim. First, to the extent that the claim posits a kind of unreflective or unwitting anti-Jewish bias, disparate treatment law has generally been understood not to concern itself with those mental states. See *infra* note 137 and accompanying text. Second, one cannot infer individual-level bias from underinclusion or inconsistency in some domain without positing a baseline expectation that, in the absence of such a bias, likes would be treated alike. Here, that expectation seems at odds with the highly contingent processes through which individual people become invested in some causes as opposed to others, including on college campuses.

⁶⁷ E.g., *Columbia Complaint*, *supra* note 1, ¶ 453.

⁶⁸ See *City of L.A. Dep’t of Water & Power v. Manhart*, 435 U.S. 702, 708 (1978). Some might question whether being subjected to an inference from Jewishness to Zionism is severely and objectively offensive (as conduct must be to constitute cognizable harassment, see *supra* note 40 and accompanying text).

⁶⁹ See *supra* Part I, pp. 2–6.

class.⁷⁰ As we also noted earlier, it is questionable whether such a claim is ever viable — especially without appeal to the agency’s disparate-impact regulation, which is on shaky legal footing, is not enforceable in private litigation, and is apparently about to be repealed.⁷¹ But assuming that categorical limitation is unsound or inapplicable, the question becomes when anti-Israel or anti-Zionist activity, although not targeted at racially Jewish students, might be so “objectively offensive” to a “reasonable person in [their] position”⁷² that it “effectively bars [their] access to an educational opportunity or benefit.”⁷³ This question could be asked both about expressive activities, such as denunciations of Israel in class presentations or protest slogans,⁷⁴ and also about disparate treatment or “shunning” of Zionist peers that (for the reasons discussed in the previous section) may not qualify as race-based disparate treatment.

Because what “rises to the level of actionable ‘harassment’ . . . ‘depends on a constellation of surrounding circumstances, expectations, and relationships,’”⁷⁵ our attempt to capture the reasonable person’s perspective here must begin with “careful consideration of the social context.”⁷⁶ And, importantly, we take it that this context-specific reasonableness inquiry is at least partly normative in character. Just as a police state cannot stamp out otherwise-reasonable expectations of privacy by instituting surveillance,⁷⁷ an employer or institution presumably cannot render otherwise-abusive treatment permissible merely by making it routine. Indeed, if the reasonable person’s expectations had been pegged solely to what actually occurs, sexual harassment law could never have gotten off the ground. As in other areas of the law, therefore, the inquiry must concern what expectations “society is *prepared to recognize as reasonable*”⁷⁸ in the setting at hand, even if some existing cultural norms might demand either more or less. Recognizing the normative and legally constructed character of “objective” offensiveness in this setting also affords some room for First Amendment concerns, which naturally bear on how Title VI should be construed, to inform

⁷⁰ See *supra* p. 7.

⁷¹ See *supra* notes 45–54 and accompanying text.

⁷² *Oncale v. Sundowner Offshore Servs., Inc.*, 523 U.S. 75, 81 (1998) (citing *Harris v. Forklift Sys., Inc.*, 510 U.S. 17, 23 (1993)).

⁷³ *Davis v. Monroe Cnty. Bd. of Educ.*, 526 U.S. 629, 633 (1999).

⁷⁴ E.g., Columbia Complaint, *supra* note 1, ¶ 536 (students delivering a speech in a public speaking class); Harvard Complaint, *supra* note 66, ¶ 136 (students chanting slogans across campus); *id.* ¶ 113 (chalking at entrance to law school building).

⁷⁵ *Davis*, 526 U.S. at 651 (quoting *Oncale*, 523 U.S. at 82).

⁷⁶ *Oncale*, 523 U.S. at 81.

⁷⁷ This is a familiar point about the Fourth Amendment. See, e.g., Orin S. Kerr, *Four Models of Fourth Amendment Protection*, 60 STAN. L. REV. 503, 532 (2007).

⁷⁸ *United States v. Jacobsen*, 466 U.S. 109, 122 (1984) (emphasis added).

the bounds of the conduct from which a person could reasonably expect to be shielded.⁷⁹

The Court demonstrated the importance of context to the hostile environment inquiry — and also the implicit normative dimension of that inquiry — when it first applied Title IX to peer harassment in the K-12 context. “[S]chools are unlike the adult workplace,” Justice O’Connor explained, not only in that “students often engage in insults . . . and gender-specific conduct that is upsetting to the students subjected to it,” but also in that the persistence of this conduct is “understandable.”⁸⁰ In fact, one can hear the Court as saying that, given what a K-12 school is — a place where “students are still learning how to interact appropriately with their peers”⁸¹ — exposure to some degree of hostile, gender-based conduct is not a discriminatory obstacle to participation in the “program or activity” so much as an inevitable component or byproduct of that program itself.⁸²

Although the Court has never had occasion to set a comparable standard for the university context, it seems clear that there, too, what the “reasonable student” finds severely offensive must turn on what it is *appropriate* for students to expect that they may face in light of the nature of the activity at issue. This does not mean that the K-12 and university standards should be similar, but that they should be similarly derived — each reflecting the activity’s purposes and the degree of insulation from identity-related offense that these aims make it reasonable for participants to expect. In fact, the university context makes the necessity of such a normative conception of reasonableness only more apparent. Without this normative element, any trend among students toward greater expectations of protection from offense would automatically be locked in by Title VI: Universities would be obliged to meet these expectations — and most likely to further escalate them in the process — even if they frustrate the university’s pedagogical function and academic mission.⁸³

Given all of that, we think there is a rough set of baseline norms and expectations that many would recognize as both familiar and well-suited to the university environment. As one court recently put it, “in the context of higher education, . . . the reasonable student expects (if not hopes) to encounter . . . ‘the unfettered exchange of ideas’ concerning a

⁷⁹ Cf. Richard H. Fallon, Jr., *Sexual Harassment, Content Neutrality, and the First Amendment Dog that Didn’t Bark*, 1994 SUP. CT. REV. 1, 44–46, 54–55 (suggesting that the Court’s embrace of an objective offensiveness standard implicitly responds to First Amendment concerns and sketching what such a standard might require on college campuses).

⁸⁰ *Davis*, 526 U.S. at 651–52.

⁸¹ *Id.* at 651.

⁸² *See id.* at 651–53.

⁸³ *See* Benjamin Eidelson, *The Etiquette of Equality*, 51 PHIL. & PUB. AFFS. 97, 98, 130–31 (2023) (discussing “respect inflation”).

wide range of controversial topics.”⁸⁴ Students thus assume the risk that they will confront, at least in the “college classroom [and] its surrounding environs,”⁸⁵ almost any of the messages and ideas they might encounter on the street corner. That does not mean that students *welcome* such a wide range of ideas; many students undoubtedly take great offense at disfavored viewpoints and withdraw from or stigmatize the speakers as a result. Yet the prevailing understanding remains that these offensive speakers are acting within their rights as members of the community — an understanding that is reflected in the sense that the university would have no business censoring them based on the content of their speech.

To be sure, this norm favoring open expression in the university context is not unqualified. For one thing, it does not extend to literal “harassment” in the sense of conduct that genuinely singles a fellow student out for insistent, personal abuse.⁸⁶ And more broadly, the norm *might* not reach other expression that can only plausibly be understood as intended to insult or demean members of a group defined by a protected characteristic. (Recognizing this broader exception to the pro-speech norm would mean, in effect, that the two conceptions of a “hostile environment” that we distinguished earlier actually converge with respect to expression in the university context.⁸⁷) For our purposes, it suffices to say simply that the “reasonable person” assumes the risk of being offended by others’ political expression at a university *at least* when the offensive activity can plausibly be understood as merely reckless with regard to the identity-related offense that others will justifiably take (rather than as aimed at provoking that response).⁸⁸

Needless to say, all of this differs from the typical workplace or K-12 school. In the workplace, political expression rarely has any special connection to the organizing purpose of the institution and is commonly restricted. More broadly, if somebody is severely offended by their coworkers’ non-work-related behavior, and that reaction is reasonable,

⁸⁴ *Gartenberg v. Cooper Union for the Advancement of Sci. & Art*, No. 24-cv-2669, 2025 WL 401109, at *11 (S.D.N.Y. Feb. 5, 2025) (quoting Azhar Majeed, *The Misapplication of Peer Harassment Law on College and University Campuses and the Loss of Student Speech Rights*, 35 J. COLL. & UNIV. L. 385, 386 (2009)); see Fallon, *supra* note 79, at 52.

⁸⁵ *Healy v. James*, 408 U.S. 169, 180 (1972).

⁸⁶ See, e.g., *Gartenberg*, 2025 WL 401109, at *11; see also Fallon, *supra* note 79, at 42 (observing that “individually targeted, face-to-face speech is especially likely to have the purpose of being, and to be experienced as, invasive, threatening, or coercive” (footnote omitted)).

⁸⁷ In other words, although conduct could theoretically be objectively offensive with respect to a group without involving disparate treatment, when it comes to speech in a university context, the only expression that might actually qualify as objectively offensive toward a group is conduct that essentially amounts to intentional disparate treatment after all. Cf. *supra* note 42 and accompanying text.

⁸⁸ Of course, speakers are also not acting within their rights as community members to the extent that they violate university rules about where and when protests can occur. But, bracketing the intent-related caveat noted in the text, the reasonable student has no *greater* expectation of being shielded from such disruption when a viewpoint or message is offensive than when it is not.

it is probably also reasonable to expect the behavior to stop.⁸⁹ Likewise, in an elementary school (and perhaps a middle or high school), an expectation that teachers will ordinarily take steps to address activities that some children reasonably find very upsetting seems entirely appropriate. An actionably “hostile environment” could thus come into being more readily in those settings. Within a university environment, however, we doubt that expressive activity can be “severely” and “objectively” offensive, in the legal sense that the case law contemplates, unless (perhaps) the expression can only reasonably be understood as malicious.⁹⁰

Of course, some will say that this speech-friendly norm departs from how universities have, in fact, conducted themselves in recent years. Two points bear emphasis in light of that concern. First, as we noted a moment ago, if universities have erred in this regard, Title VI should not be interpreted to compel them to keep digging.⁹¹ Second, if the complaint is not that universities have tolerated harassment when they ought not to have, but rather that they have tolerated harassment when they *would* not have if others had been affected, that is not a hostile environment claim but a traditional disparate treatment claim. We will turn to such claims in Part III.

In the interest of confronting rather than avoiding hard questions, however, we will first illustrate the practical upshot of our discussion here by applying the analysis to examples of the two kinds that we noted at the outset of this section: (1) anti-Israel protests that are alleged to cross the line into antisemitism; and (2) attempts by student groups to exclude Zionists or supporters of Israel from membership.

I. Protest Slogans. — Many recent claims of a hostile environment have rested in part on slogans and chants employed by pro-Palestinian protesters, such as “globalize the intifada.”⁹² Although we appreciate that this rhetoric elicits discomfort for many Jews on college campuses (including, candidly, both of us), we take our analysis to imply that being subjected to it in public spaces could not ordinarily contribute to a hostile environment under Title VI. Examining this rhetoric more closely will help to illustrate why.

Like many words and symbols that figure in political conflicts, “intifada” has multiple resonances imparted by its usage for different

⁸⁹ Cf. Fallon, *supra* note 79, at 43–44.

⁹⁰ For a defense of a more speech-protective view that lacks this proviso about intent, see Alex Gourevitch, *The Right To Be Hostile*, BOSTON REV. (May 6, 2025), <https://www.bostonreview.net/articles/the-right-to-be-hostile> [<https://perma.cc/FBR7-X7RD>] (urging universities to reject claims that protests create an impermissibly “hostile environment” in the absence of “some likely and imminent threat of harm, or direct and individualized harassment and intimidation”).

⁹¹ See *supra* note 83 and accompanying text.

⁹² See, e.g., Harvard Complaint, *supra* note 66, ¶ 141; First Amended Complaint ¶¶ 156, 173, StandWithUs Ctr. for Legal Just. v. Mass. Inst. of Tech., 742 F. Supp. 3d 133 (D. Mass. 2024) (No. 24-cv-10577).

purposes within different communities.⁹³ For many (especially Jews of a certain age), the word is akin to a proper noun and mainly evokes the Second Intifada — a discrete historical episode in which Palestinian suicide bombers targeted and murdered Israeli civilians at nightclubs, on buses, and elsewhere. (As one Jewish undergraduate observed, “[g]rowing up in a Zionist family . . . ‘the word intifada was only associated with death and terrorism and destruction.’”⁹⁴) But the word is also commonly used in other communities to refer to the phenomenon of Palestinian resistance more broadly — or, indeed, to refer to resistance movements in the Arab world more broadly still.⁹⁵ To the extent that the word’s usage with respect to Israel calls to mind a particular image, moreover, for many that will not be suicide bombings, but the “stone-throwing by Palestinian youths against . . . tanks and soldiers” that “caught the attention of news media around the world” in the late 1980s, when the word “intifada” became widely associated with Palestinian resistance in the first place.⁹⁶

Now, even for those who want only to urge worldwide support for Palestinian resistance in the thinnest sense, the fact that some will hear a call for “intifada” as urging the murder of Israeli Jews furnishes a powerful reason to avoid that word. As Peter Beinart observes, “[t]he aftermath of October 7 was an extremely inopportune time for slogans that blur the line between different forms of resistance.”⁹⁷ Given the historical moment and broader interpretive context that is salient for many American Jews, a Jewish student who is disturbed and offended when confronted with chants of “intifada” on campus should not be dismissed as thin-skinned or unreasonable. Moreover, at least once the reactions of Jewish students became widely known,⁹⁸ there were powerful reasons of sensitivity to change approach — and the failure to do so may give reasonable cause for offense in itself.⁹⁹ So, too, could the

⁹³ Cf. Eidelson, *supra* note 83, at 109–14 (discussing the overdetermination of symbols when “different people . . . have different understandings of just who ‘owns’ the convention,” *id.* at 111).

⁹⁴ Adrian Florido, *Chants of “Intifada” Ring Out from Pro-Palestinian Protests. But What’s It Mean?*, NPR (June 4, 2024, 6:44 AM), <https://www.npr.org/2024/06/04/nx-s1-4958278/intifada-chants-pro-palestinian-protests-israel> [<https://perma.cc/F9UW-XN9T>]; see also HARVARD UNIV., FINAL REPORT: PRESIDENTIAL TASK FORCE ON COMBATING ANTISEMITISM AND ANTI-ISRAELI BIAS 248 (2025) (similar).

⁹⁵ As Peter Beinart observes, “intifada” is “the word Arabic newspapers used for the protests in Paris in 1968 and Egypt in 2011.” PETER BEINART, *BEING JEWISH AFTER THE DESTRUCTION OF GAZA: A RECKONING* 89 (2025); see also CHARLES TRIPP, *A HISTORY OF IRAQ* 127 (3d ed. 2007).

⁹⁶ GILLES KEPEL, *BEYOND TERROR AND MARTYRDOM: THE FUTURE OF THE MIDDLE EAST* 85 (Pascale Ghazaleh trans., 2009).

⁹⁷ BEINART, *supra* note 95, at 90.

⁹⁸ See, e.g., HARVARD UNIV., *supra* note 94, at 110 (noting that “the popular chant ‘Globalize the intifada[!]’ [was] widely perceived as antisemitic”).

⁹⁹ See Eidelson, *supra* note 83, at 118–31 (discussing this aspect of “reasons of sensitivity” as a class); *id.* at 119 (discussing a related example). Pro-Palestine protesters have sometimes cited these

possibility of emboldening those who *do* harbor a hatred, not just of current political arrangements, but of Jews as such.

But none of this entails that protesters who hew to the “intifada” chant are making that choice in order to provoke, insult, or threaten their Jewish (or even Israeli) peers. Quite apart from any such motive, it is unsurprising that some Palestinians (and those aiming to express solidarity with them) might strongly favor “our indigenous language as Palestinians.”¹⁰⁰ Indeed, even somebody who sincerely regrets the distress inflicted on Jewish peers might be reluctant to help cement a norm that amounts to a taboo on the prevailing Arabic word for Palestinian resistance. Moreover, to the extent that the Israel-Palestine conflict is itself substantially about the just status relations of Jews and Palestinians in the Middle East, asking Palestinians (and those professing support for them) to prioritize sensitivity to Jewish students over competing concerns of authenticity or solidarity might be felt — rightly or wrongly — as asking too much. Finally, some protesters might well take the fact that many Jews on college campuses have joined in solidarity with them to cast doubt on others’ insistence that the word “intifada” is so deeply entrenched as a “call for . . . genocide”¹⁰¹ that it can only be abandoned.¹⁰²

For our purposes, it is unnecessary to adjudicate the balance of competing reasons here (which is not to say that we think — or do not think — the question is a close one). Our point is really just the opposite: This is exactly the kind of debate that nobody should expect university officials to resolve by fiat in the name of reducing warranted offense. Rather, as the Chicago Statement on Freedom of Expression (adopted by more than 100 institutions)¹⁰³ says, “[i]t is for the individual members of the University community, not for the University as an institution, to make [such] judgments for themselves.”¹⁰⁴ That principle

reasons of sensitivity themselves as cause for changing course. See, e.g., Emma H. Haidar & Cam E. Kettles, *Encampment Protesters Remove Drawing of Harvard President as Devil After Backlash*, HARVARD CRIMSON (May 12, 2024), <https://www.thecrimson.com/article/2024/5/12/garber-devil-poster-removed-hoop-encampment> [https://perma.cc/6R9W-XDNT].

¹⁰⁰ Florido, *supra* note 94 (quoting “a Palestinian American graduate student at Columbia”).

¹⁰¹ *Holding Campus Leaders Accountable and Confronting Antisemitism: Hearing Before the H. Comm. on Educ. & the Workforce*, *supra* note 1, at 63 (statement of Rep. Elise Stefanik) (“[T]he use of the term *intifada* in the context of the Israeli Arab conflict is indeed a call for violent armed resistance against the State of Israel, including violence against civilians and the genocide of Jews. Are you aware of that?”).

¹⁰² See, e.g., Kiara Alfonseca, *Jewish Student Protesters Celebrate Passover Seder in Encampments*, ABC NEWS (Apr. 24, 2024, 2:58 PM), <https://abcnews.go.com/US/jewish-student-protesters-celebrate-passover-seder-encampments/story?id=109538075> [https://perma.cc/H38H-JWMP].

¹⁰³ *Chicago Statement: University and Faculty Body Support*, FOUND. FOR INDIVIDUAL RTS. & EXPRESSION, <https://www.thefire.org/research-learn/chicago-statement-university-and-faculty-body-support> [https://perma.cc/X4XF-5A2H].

¹⁰⁴ GEOFFREY R. STONE ET AL., REPORT OF THE COMMITTEE ON FREEDOM OF EXPRESSION (2015), <https://provost.uchicago.edu/sites/default/files/documents/reports/FOECommitteeReport.pdf> [https://perma.cc/EFK8-NUMQ].

might run out, we have suggested, when an activity's offensiveness to a racial group is manifestly its *raison d'être*, but not when the potential for offense is plausibly understood as a side effect tracing to even a culpable lapse of sensitivity.¹⁰⁵

Finally, although we have focused on speech that is offensive to many Jewish students, the same of course goes for rhetoric that some Palestinian or Arab students regard as highly offensive — such as “I stand with the IDF,” which some foreseeably hear, in context, as asserting the permissibility of what they regard as atrocities committed against Palestinians.¹⁰⁶ Even if, in some settings, a hostile environment can be formed from the collateral effects of nonmalicious protest activity that is reasonably felt as highly offensive toward a protected group, a suitable understanding of the norms that govern the university context plausibly rules that out as a matter of law.

2. *Exclusion of Zionists.* — What about the targeted exclusion of Zionist students from formal or informal student groups? If cognizable harassment must be motivated by a protected characteristic, our earlier discussion of these cases is controlling (because Zionism itself is not one) and further analysis is unnecessary.¹⁰⁷ But what if, as we are now assuming, it suffices that students of Jewish ancestry could reasonably take severe offense at some conduct (even though it is not targeted at them as members of that class)? Would the exclusion of Zionist students then contribute to a hostile environment for Jewish students? Although this claim is not clearly meritorious either, we think it is at least somewhat stronger than the parallel one about protest slogans that we have just rejected.

Making a firm judgment about this kind of case would require resolving hard questions about the sense in which conduct must be offensive to (or perhaps regarding) members of a racial group, especially when the group is internally divided about how the conduct relates to their shared identity.¹⁰⁸ There is at least a colorable argument, though, that it is objectively offensive for students to exclude peers from activities — especially activities that are only tenuously related to the Israel-Palestine conflict — on the basis of felt attachments to Israel that everyone knows to be heavily and non-accidentally concentrated among people of Jewish ancestry.¹⁰⁹ In other words, Jewish students who are

¹⁰⁵ Although our schematic analysis here focuses on the plausibility of nonmalicious uses of the slogan in the abstract, a real-world judgment could of course come out differently in light of other evidence about the speakers' intentions.

¹⁰⁶ Cf. BEINART, *supra* note 95, at 90 (discussing such slogans).

¹⁰⁷ See *supra* section II.A, pp. 9–11.

¹⁰⁸ Some agency guidance and older cases ask whether a reasonable person of the offended student's race would take offense. See, e.g., 1994 Guidance, *supra* note 37, at 11449, 11452; cf. *Brennan v. Metro. Opera Ass'n*, 192 F.3d 310, 321 (2d Cir. 1999) (Newman, J., concurring in part and dissenting in part) (surveying approaches). We doubt, however, that a “reasonable Jew” standard could be appropriate. See *supra* note 64 and accompanying text.

¹⁰⁹ Cf. Eidelson, *supra* note 83, at 98, 120–24, 127–30 (discussing cases with a similar structure).

excluded might reasonably see that practice as manifesting an insulting tolerance for a state of affairs in which they and many other Jews end up banned from diverse aspects of campus life by dint of commitments that their fellow students know that many see (even if others do not) as bound up with their identity as members of a protected group.¹¹⁰ (This line of thought is not unique to Jewishness; the logic would be the same for exclusions based on the other race-associated cultural practices that we mentioned above.¹¹¹)

And if this means that the exclusion of Zionists can indeed be racially offensive in the relevant sense (a significant “if”), then it is crucial that no firm norm about the university context appears to disqualify that offense from contributing to a legally cognizable hostile environment.¹¹² Unlike offensive speech, acts of exclusion based on a person’s beliefs are neither a routine feature of the campus environment nor clearly shielded by the ideal of open expression that we appealed to above.¹¹³ Conduct of this kind might contribute to cognizable hostility, then, although it would still need to be “pervasive” enough to have “a systemic effect on educational programs or activities” in order to ground a hostile environment under Title VI.¹¹⁴

C. Inadequate Response

Finally, whatever exactly a “hostile environment” requires, the existence of such an environment does not place a funding recipient in violation of Title VI on its own. Liability depends, rather, on the funding recipient’s failure to *respond* to that situation in an adequate way. And here the Supreme Court’s case law, developed in the context of private suits for damages, is strikingly different from the Department of Education’s enforcement guidance.

¹¹⁰ Cf. FELDMAN, *supra* note 62, at 139 (“[F]or many Jews, Israel is central and essential to Jewishness.”).

¹¹¹ See *supra* note 60 and accompanying text.

¹¹² Cf. Christian Legal Soc’y Chapter of the Univ. of Cal., Hastings Coll. of the L. v. Martinez, 561 U.S. 661, 669 (2010) (holding that, under the First Amendment, a public university may force a student group “to choose between welcoming all students and forgoing the benefits of official recognition”).

¹¹³ Of course, the same is even more clearly true of acts of violence, vandalism, or the like. Our analysis thus also leaves open the possibility that acts of those kinds that are motivated purely by hostility to Zionism (just like acts of exclusion that are motivated in the same way) could contribute to a racially hostile environment. Whether that possibility is realized would again depend on whether the relevant actions toward Zionists are also *racially* offensive in the requisite sense, see *supra* notes 108–11 and accompanying text, as well as on whether the broader hostile environment theory is viable in the first place.

¹¹⁴ Davis v. Monroe Cnty. Bd. of Educ., 526 U.S. 629, 653 (1999); see *id.* at 652. But cf. *supra* note 59 (noting potential uncertainty about the relationship between severity and pervasiveness).

For purposes of damages suits (such as those some universities have recently faced¹¹⁵), the Court has emphasized that the proper standard in the peer harassment context is highly forgiving. In order to support liability, the Court reasoned, the defendant's act of "subject[ing]" students to peer harassment must itself be intentional.¹¹⁶ A claim can thus prevail only if a school acted "intentionally" by at least "remaining *deliberately indifferent* to . . . [qualifying] harassment of which it had actual knowledge."¹¹⁷ As we will explain in a moment, this standard, in conjunction with our earlier analysis, would seem to leave only the slim-est prospect of damages liability for a university.

For purposes of administrative enforcement, by contrast, the Department of Education has articulated a much more demanding standard. According to the agency, the Court's insistence on intentionality (even in the form of deliberate indifference) is a unique feature of the damages context.¹¹⁸ The agency could thus deem a school in violation if the school "failed to take prompt and effective steps reasonably calculated to . . . eliminate any hostile environment and its effects."¹¹⁹ The agency has justified this substantive rigor by pointing to the compensating procedural protections of its enforcement scheme — in which the agency "must attempt to secure compliance by voluntary means" and "fund termination . . . comes only after the recipient has notice of a violation and an opportunity to correct it."¹²⁰ (Notably, the President's "Task Force to Combat Anti-Semitism" does not appear to be observing these constraints.¹²¹) Insofar as the agency's substantive standard does away with any requirement of intentional action by the funding recipient, however, it embodies a strikingly expansive conception of regulated parties' affirmative responsibility to curb discrimination — one that again sits uneasily with the Trump Administration's professed vision of anti-discrimination law.¹²²

Without finely parsing how the judicial and administrative standards might differ, we will briefly consider how they might apply to three different forms of peer harassment and corresponding possible

¹¹⁵ See, e.g., *Kestenbaum v. President & Fellows of Harvard Coll.*, 743 F. Supp. 3d 297, 303 (D. Mass. 2024); *StandWithUs Ctr. for Legal Just. v. Mass. Inst. of Tech.*, 742 F. Supp. 3d 133, 137–38 (D. Mass. 2024).

¹¹⁶ See *Davis*, 526 U.S. at 640–43; *Franklin v. Gwinnett Cnty. Pub. Schs.*, 503 U.S. 60, 70 (1992).

¹¹⁷ *Davis*, 526 U.S. at 642 (emphasis added) (citing *Gebser v. Lago Vista Indep. Sch. Dist.*, 524 U.S. 274, 290 (1998)); see *Gebser*, 524 U.S. at 284.

¹¹⁸ See Revised Sexual Harassment Guidance: Harassment of Students by School Employees, Other Students, or Third Parties, 65 Fed. Reg. 66092, 66093 (Nov. 2, 2000) [hereinafter 2000 Guidance].

¹¹⁹ 2024 Guidance, *supra* note 31, at 4.

¹²⁰ 2000 Guidance, *supra* note 118, at 66093 (citing *Gebser*, 524 U.S. at 289); see *Gebser*, 524 U.S. at 289–90.

¹²¹ See sources cited *supra* note 4.

¹²² See, e.g., Exec. Order No. 14,281, 90 Fed. Reg. 17537, 17537 (Apr. 23, 2025) (criticizing the imposition of liability where "there is no facially discriminatory policy or practice or discriminatory intent").

interventions. First, given the nature of the university context, we strongly doubt that the Court would read Title VI to require the imposition of content-based speech restrictions or wholesale restrictions on avenues for communication (such as blocking access to online fora¹²³) in the name of curing a hostile environment.¹²⁴ Certainly a university that opted against those measures on mission-related grounds would not thereby show itself to be indifferent to the harassment that persists as a result. And, although the nuances of the First Amendment issues are beyond our purview here, even the agency has said that schools (including private ones) need not take any remedial measures that, for a public institution, would violate the First Amendment.¹²⁵

Second, especially insofar as a hostile environment might comprise diffuse acts of social exclusion or “shunning,” any assessment of the adequacy of a school’s response would need to account for the degree of control that the institution exercises over its members. In the K-12 context, the Court suggested that school officials could fairly be held responsible for their inaction in the face of a student’s harassment because they wield “comprehensive authority . . . to prescribe and control conduct in the schools” — power “that could not be exercised over free adults.”¹²⁶ As the Court therefore also acknowledged in passing, universities exercise vastly less control over the conduct of their vastly greater numbers of students, all of whom are adults rather than children.¹²⁷ Especially at moments of intense group conflict in the wider world, it is thus possible that peer harassment, perhaps even rising to the level of a hostile environment, could exist and that a university could nonetheless have done all that it could reasonably be expected to do to protect adults from one another’s hostile sentiments in social life.¹²⁸

¹²³ See, e.g., Harvard Complaint, *supra* note 66, ¶ 149 (“Harvard has refused to disable access to Sidechat on its WiFi network . . .”).

¹²⁴ Cf. *supra* notes 70–106 and accompanying text; *Davis v. Monroe Cnty. Bd. of Educ.*, 526 U.S. 629, 667 (1999) (Kennedy, J., dissenting) (collecting cases striking down speech codes at public universities).

¹²⁵ See Letter from Gerald A. Reynolds, Assistant Sec’y for the Off. of C.R., U.S. Dep’t of Educ., to Colleagues (July 28, 2003), <https://www.ed.gov/about/offices/list/ocr/firstamend.html> [<https://perma.cc/M24U-6UYG>]; see also 2024 Guidance, *supra* note 31, at 3.

¹²⁶ *Davis*, 526 U.S. at 646 (quoting *Tinker v. Des Moines Indep. Cmty. Sch. Dist.*, 393 U.S. 503, 507 (1969); *Vernonia Sch. Dist. 47J v. Acton*, 515 U.S. 646, 655 (1995)).

¹²⁷ See *id.* at 649.

¹²⁸ Cf. Pettys, *supra* note 59, at 21–22 (“College students come to campus as peers, standing in relation to one another merely as adults who share a desire to pursue studies at the given institution. In their dealings with one another, students usually can be expected to protect themselves with the same kinds of self-help strategies they use when managing interpersonal conflicts in the larger community.”); Mark Tushnet, *Some Thoughts About Free Speech and Hostile Environment Discrimination on College Campuses* 32 (Harv. Pub. L. Working Paper No. 25-09, 2024), <https://ssrn.com/abstract=4989853> [<https://perma.cc/6S74-XVCR>] (suggesting that “counterprogramming or ameliorative actions are not likely to do a great deal to offset an existing hostile environment” but that “[in] light of principles of free expression and academic freedom, . . . they may be all that colleges and universities can do” and thus might bar liability).

Finally (and conversely), if a cognizable hostile environment for students of Jewish ancestry were grounded in severe and pervasive discrimination by recognized student groups, prohibitions on exclusion from those groups might well be required as a “reasonably calculated” response (although failing to respond in that way would not necessarily evince deliberate indifference). At a minimum, a university charged with purging a racially hostile environment could surely be expected to ban discrimination on the basis of race, including Jewishness. But it is also at least possible that — whether because of the practical difficulties of disentangling decisions based on race, religion, and politics in this context,¹²⁹ or because one concludes that some people of Jewish ancestry reasonably regard anti-Zionist exclusions as racially offensive¹³⁰ — broader antidiscrimination rules for membership in student groups could be required as well.

* * *

So where does all of this leave us with regard to claims that, through their inaction in the face of anti-Israel activities, universities have unlawfully tolerated a racially hostile environment for Jewish students? Although we have acknowledged a number of caveats and loose ends, we are, on the whole, quite skeptical of the merits of these claims under existing law. If the relevant harassment must consist of disparate treatment, a hostile environment will exist only if Jewish students are severely and pervasively harassed *because of their Jewish ancestry*.¹³¹ And if the relevant harassment can take the form of other conduct that is severely and objectively offensive to people of Jewish ancestry (a legal theory that may not be viable at all¹³²), the university context likely disqualifies the bulk of the expressive conduct that has loomed large in this area from meeting that description.¹³³ The conduct that might most plausibly withstand that filter — exclusion from particular student groups based on support for Israel — seems unlikely to rise to the level of a systemic obstacle to educational access.¹³⁴ But, finally, even if it did, a reasonable effort to curb the relevant acts of discrimination would clearly suffice to meet the university’s obligations for purposes of damages liability. And — again assuming all of the other hurdles were cleared — adjustments to antidiscrimination rules might well suffice to resolve the matter under a sincere application of the agency’s enforcement standards as well.¹³⁵

¹²⁹ See *supra* p. 11.

¹³⁰ See *supra* notes 108–14 and accompanying text.

¹³¹ See *supra* section II.A, pp. 9–11.

¹³² See *supra* notes 45–54 and accompanying text.

¹³³ See *supra* notes 70–105 and accompanying text.

¹³⁴ See *supra* section II.B.2, pp. 18–19.

¹³⁵ See *supra* pp. 20–22.

III. A RACIAL DOUBLE STANDARD FOR JEWS?

We will consider more briefly a second liability theory that some have advanced — not that universities have tolerated a hostile environment *for* Jews, but that the universities themselves have engaged in prohibited differential treatment *of* Jews. The main form that this supposed differential treatment takes is an alleged double standard for responding to the complaints or accommodating the concerns of Jewish students as compared to those of others.¹³⁶ While the existence of such a double standard is ultimately a factual question (and so admits of no across-the-board answer), two general points are significant.

First, under existing law, a disparate-treatment claim must allege not merely that a university has behaved differently in different instances, but that the *reason* for this disparity was a difference in the races of the affected parties. Indeed, the Supreme Court has often said that disparate treatment requires “a discriminatory intent or motive,” thereby at least suggesting that even implicit bias against a racial group or unreflective disparities in attitudes of sympathy and indifference would not suffice.¹³⁷ A successful “double standard” claim would thus likely need to establish a conscious preference for other racial minorities over racial Jews, not merely a difference in outcomes or even a deficit of felt solicitude for less familiar beneficiaries of campus inclusion efforts.

Second, while we are in no position to assess the mental states of countless university administrators, there are obvious nondiscriminatory explanations for why a university might take a more cautious approach to the recent claims of alienation or exclusion raised by Jewish students than it has in some other cases. For one thing, insofar as the complaints allege anti-Israel bias, that allegation actually cuts *against* the required inference that Jewish students were treated differently on the basis of their *race*.¹³⁸ As one court observed in rejecting a “double standard” claim, “viewpoint discrimination . . . is not actionable under Title VI.”¹³⁹ But even setting that point aside, the simple fact that the current claims by Jewish students are enmeshed with hotly disputed views about world affairs means that efforts to accommodate them may

¹³⁶ See, e.g., *Kestenbaum v. President & Fellows of Harvard Coll.*, 743 F. Supp. 3d 297, 310–11 (D. Mass. 2024) (describing this theory). In addition, if the behavior by peers that we discussed in section II.A, pp. 9–11, were performed by “a school’s representative,” it could potentially be analyzed as simple disparate treatment. 2024 Guidance, *supra* note 31, at 14–16. But see *StandWithUs Ctr. for Legal Just. v. Mass. Inst. of Tech.*, 742 F. Supp. 3d 133, 141 n.8 (D. Mass. 2024) (holding that “vicarious liability is unavailable under Title VI”).

¹³⁷ *Watson v. Fort Worth Bank & Tr.*, 487 U.S. 977, 986 (1988); see *Bostock v. Clayton County*, 140 S. Ct. 1731, 1740 (2020). But cf. *Thomas v. Eastman Kodak Co.*, 183 F.3d 38, 57–61 (1st Cir. 1999) (suggesting a broader view).

¹³⁸ The issue has much the same structure as the challenge of “disentangl[ing] race and politics” for a racial gerrymandering claim when the two are “highly correlated.” *Alexander v. S.C. State Conf. of the NAACP*, 144 S. Ct. 1221, 1233, 1235 (2024); see *id.* at 1235 (“If either politics or race could explain a district’s contours, the plaintiff has not cleared its bar.”).

¹³⁹ *Kestenbaum*, 743 F. Supp. 3d at 311.

pose risks of chilling political speech or intruding on academic freedom that are less acute in many other cases.¹⁴⁰ Similarly, as our earlier discussion reflects, many of the expressive acts at the center of the relevant campus conflicts are more ambiguous — by dint of the different interpretive contexts that different students bring to bear — than are more classic examples of hate speech.¹⁴¹ The most natural comparator, in all of these respects, would be claims of discrimination and exclusion raised by Palestinian, Arab, and Muslim students, and it is far from clear that universities have been systematically more accommodating when those students have alleged peer harassment over the same period.

CONCLUSION

We take our discussion here to show that the applicable legal analysis under Title VI is more nuanced, less settled, and generally less friendly to the recent wave of antisemitism accusations than a casual observer might imagine. Given the fact-sensitivity of that analysis, we cannot opine here on the merits of any actual or hypothetical Title VI action against any particular university. But under the most plausible rendering of current law and its natural implications, claims that failures to “uphold civil rights laws” are “endemic in our nation’s most prestigious universities and colleges” are unfounded.¹⁴² Even as universities highlight the bad faith and procedural deficiencies of the Trump Administration’s enforcement efforts, therefore, they should avoid acquiescing to the premise that they have failed to meet their legal obligations. We do not doubt that universities can improve on any number of fronts, including both fostering a greater sense of inclusion and better protecting freedom of expression. But to the extent that some stakeholders might favor a particular balance between the two, they should be expected to justify that judgment on its merits rather than claiming, explicitly or implicitly, that Title VI is forcing their hand.

¹⁴⁰ At Harvard, for example, measures taken partly in the name of combating antisemitism led to “fears of being labeled antisemitic when participating in protests or engaging in activities related to Palestinian issues, even just speaking out about the plight of civilians in Gaza.” HARVARD UNIV., FINAL REPORT: PRESIDENTIAL TASK FORCE ON COMBATING ANTI-MUSLIM, ANTI-ARAB, AND ANTI-PALESTINIAN BIAS 48 (2025); see also David Pozen, *Seeing the University More Clearly*, LPE PROJECT (May 7, 2024), <https://lpeproject.org/blog/seeing-the-university-more-clearly> [<https://perma.cc/VM87-7KWQ>] (“I cannot think of another instance where one group’s asserted experience of discriminatory harassment corresponds so closely with another group’s asserted expression of political protest — and where both groups contain a substantial share of the student body.”).

¹⁴¹ See *supra* section II.B.1, pp. 15–18.

¹⁴² Press Release, U.S. Dep’t of Health & Hum. Servs., Joint Task Force Statement Regarding Harvard University (Apr. 14, 2025), <https://www.hhs.gov/press-room/anti-semitism-task-force-statement-on-harvard-contracts-grants.html> [<https://perma.cc/VDY6-77V7>].